

court correctly sustained a demurrer to an ex-wife's suit alleging that her ex-husband conspired with his sister and their mother to cut the ex-husband out of the mother's will so that the ex-wife would not be able to reach property otherwise destined for the ex-husband, because the suit was either an attack on the validity of deceased mother's will or an attempt to seek distribution of the mother's estate in contradiction of terms of the will. (*Id.* at pp. 1239-1240.) Either way it should have been the subject of a probate claim.

Additionally, in *Saks v. Damon Raike & Co.* (1992) 7 Cal.App.4th 419 the trust beneficiaries sued a real estate broker and an attorney who had provided services to the trust, contending that they had breached duties of care and fiduciary duties to the trust by failing to disclose certain material information about a property transaction in which they had represented the trust. (*Id.* at p. 423.) The complaint also alleged that the attorney had acted improperly in advising the beneficiaries (who previously had been trustees) to resign as trustees, leaving Sumitomo Bank as the sole trustee. (*Id.* at p. 424.) The trial court sustained the defendants' demurrers to the complaint and the court of appeal affirmed. The Court of Appeal held that the beneficiaries' "only proper course was to proceed against the trustee in the probate department, seeking either to compel [the trustee] to proceed against [the third party tortfeasors], or to remove it and to appoint a trustee ad litem to sue the third parties." (*Id.* at p. 430.)

While Cross-Complainant argues in opposition that these authorities are inapplicable because he is neither a beneficiary or a trustee, he is, however, one of the Settlers of the Trust in question. Furthermore, he has actively participated in the Probate action concerning the same Trust. The Court is not aware of a procedural bar that would preclude his seeking the relief of the Cross-Complaint (damages in the form of tax liability as a consequence of Cross-Defendant's alleged deliberate failure to obtain the required gaming license for transfer of the Trust's assets to his individual Trust) in the Probate action. Indeed, the pleadings and orders in that case suggest that he is seeking similar relief there.

Conclusion

Although Cross-Defendant requests dismissal of the Cross-Complaint (Dem. at 10:17-18), the Court finds that transfer, not dismissal, is the proper procedure. There is no separate probate court in California; rather, probate jurisdiction is vested in the Superior Court, and the probate department simply is the Superior Court sitting in probate. (See generally *Glade v. Glade* (1995) 38 Cal.App.4th 1441, 1449 ("Even though a superior court is divided into branches or departments, pursuant to California Constitution, article VI, section 4, there is only one superior court in a county and jurisdiction is therefore vested in that court, not in any particular judge or department. Whether sitting separately or together, the judges hold but one and the same court."); see also e.g. *People v. Superior Court of San Bernardino County* (1930) 104 Cal.App.276, 281 ("The juvenile court is itself a superior court, although acting in a particular class of cases, and has an inherent power to transfer a case to another department of the same court, when the limits of its special powers are reached").)

In a footnote in *Saks*, the Court of Appeal expressly noted the assigned court had the authority to transfer the civil action to the probate department. (*Saks, supra*, at p. 430 n.8 ("Although the parties do not address this point, we note that the trial court could have, on its own motion, transferred this action to the probate department under Code of Civil Procedure section 396, rather than dismissing it.").)

Consequently, this Court transfers the Cross-Complaint to the probate division.

7. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
*HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES CLAIMS
FILED BY: DAVID T. SEENO
TENTATIVE RULING:

See Line 6.

8. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT OF DAVID T. SEENO
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Norsan Financial & Leasing (“Norsan” or “Defendant”)’s Demurrer. The Demurrer relates to Plaintiff David T. Seeno (“DTS”), the David T. Seeno Revocable Trust Dated July 12, 2016 (“DTS Trust”), and Lionheart Homes, Inc. (“Lionheart”) (collectively, “Plaintiffs”) second amended complaint for (1) Breach of Contract against Alsan, (2) Conversion against Norsan, (3) Breach of Contract against Norsan, (4) Promissory Estoppel against Norsan, (5) Common Count against Norsan, and (6) Negligent Misrepresentation against Norsan.

Defendant demurs to all Plaintiff’s causes of action pursuant to Code of Civil Procedure § 430.10 on several grounds.

For the following reasons, the Demurrer is **SUSTAINED-IN-PART** with respect to the breach of contract claim (without leave to amend) and otherwise **OVERRULED**.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

This is the third challenge to Plaintiffs’ complaint. Defendant once more argues that because Plaintiffs allege Norsan’s alleged acts occurred in 2018 and 2020 (and the complaint was not filed until November 2024), the causes of action against Norsan are barred by the three-year statute of limitations for conversion and breach of contract and the two-year limitations period for promissory